

24STCV15185 24STCV15185

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-12

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Case Number: 24STCV15185 Hearing Date: August 12, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 12, 2026

Case Name: Stefan, et al. v. Giardino Enterprises, LTD, et al.

Case No.: 24STCV15185

Matter: Motions to Compel Compliance (2x)

Motions to Compel Further Responses (2x)

Motion to Deem Admitted

Ruling: The Motions as to documents are denied.

The Motion to Deem Admitted is denied.

The Motion as to Form Interrogatories is mostly granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a construction defect case.

On December 8, 2025, Plaintiffs Jamil and Amanda Stefan filed the operative Second Amended Complaint for (1) violation of Civ. Code § 900, et seq and (2) violation of Building Standards.

Documents

Defendants Giardino Enterprises, Ltd., Mark Maurice Giardino, Meghann Elizabeth Giardino, and Fareid Taheri assert two motions to compel compliance with document production and one motion to compel further responses as to requests for production.

After the Court's July 24, 2026, ruling on a related motion, Plaintiffs served further responses and documents to the discovery at issue. Therefore, the Motions are denied as moot. The parties should meet and confer as to the sufficiency of the responses.

Plaintiffs are sanctioned \$1,000, payable within 30 days, due to the unjustified delay.

Admissions

Defendants seek to deem their RFAs propounded on Plaintiffs admitted.

Because verifications were served after the Motion was filed, the Motion is denied. The parties should meet and confer as to the sufficiency of the responses.

Plaintiffs are sanctioned \$1,000, payable within 30 days, due to the unjustified delay.

Form Interrogatories

Defendants seek to compel further responses to their form interrogatories from Plaintiffs.

The Motion is denied as to FI no. 301.1, as to which the response was sufficient.

The Motion is granted as to FI no. 302.1 because no response was provided by Amanda.

The Motion is granted as to FI nos. 302.2, 302.3, 302.4, and 302.5 because the objections lack merit.

The Motion is granted as to FI no. 304.1 because the response is incomplete.

The Motion is granted as to FI no. 305.1 because the response is incomplete and the objections lack merit.

The Motion is granted as to FI no. 305.3—provide a privilege log.

The Motion is granted as to FI nos. 305.4 and 305.5 as the responses are evasive.

The Motion is granted as to FI no. 305.11 because the response is incomplete.

The Motion is granted as to FI no. 305.13—provide a privilege log.

The Motion is granted as to FI nos. 305.14 and 309.2 because the responses are incomplete.

The Motion is granted as to FI no. 311.1 because the response is evasive.

The Motion is granted as to FI nos. 311.3, 311.4, 312.1—provide a privilege log.

The Motion is granted as to FI nos. 314.1 and 314.2 because the responses are evasive and incomplete.

The Motion is mostly granted as set forth herein. Further responses are to be provided within 10 days. Plaintiffs are sanctioned \$1,000, payable within 30 days.

Moving party to give notice.